

Prithvi Chand And Another vs State Of H.P. And Another on 11 July, 2024

Neutral Citation No. (2024:HHC:4936) IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No. 54 of 2020 .

Reserved on: 05.07.2024 Date of Decision: 11.07.2024.

Prithvi Chand and another

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State of H.P. and another

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Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting?1 No. For the Petitioners : Mr. Ashwani Sharma, Advocate. For the Respondents : Mr. Ajit Sharma, Deputy Advocate General, for respondent No.1/State.

Mr. Rajesh Verma, Advocate, for respondent No.2.

Rakesh Kainthla, Judge The petitioners have filed the present petition for quashing the summoning order dated 16.3.2018, passed by the learned Chief Judicial Magistrate (CJM), Hamirpur in an application under Section 12 of the Protection of Women from Domestic Violence Act (DV Act) filed by respondent No.2 Whether reporters of Local Papers may be allowed to see the judgment? Yes.

(applicant before the learned Trial Court). (The parties shall hereinafter be referred to in the same manner as they were .

arrayed before the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present petition are that the petitioner (Anju Kumari) filed an application before the Protection Officer stating that she was married to Ravi Kumar on 20.3.2017 as per Hindu Rites and Customs. She resided with her husband for five days. Her husband went to Australia and he assured her that he would call her later. She started residing with the respondents, her parents-in-law. They started harassing the petitioner on trivial matters. They prevented her from talking to her husband. They started pressurizing her to ask her father to

transfer the land in their favour. The respondents turned the petitioner out of her matrimonial home. Her husband also stopped talking to her. No maintenance was provided to her. Hence, she prayed that action be taken against the respondents.

3. The Protection Officer submitted a Domestic Incident Report seeking various reliefs. Learned Chief Judicial Magistrate, Hamirpur issued notice to the respondents.

4. Being aggrieved from the order passed by the learned Trial Court, the respondents have filed the present petition .

asserting that the petitioner had filed a complaint against the respondents which resulted in FIR No. 129 of 2018 for the commission of offences punishable under Sections 498-A and 120-B of IPC in Police Station, Sadar. These proceedings are actuated by mala fides. They were instituted for wreaking vengeance and extracting money from the respondents. The petitioner asked her husband to give 20.00 lacs for the construction of a house over the land of her father as she did not want to reside in the village with her parents-in-law. He refused to do so. The petitioner concocted a false story against the respondents to extract money from them. She left her matrimonial home without any reasonable cause. This is apparent from the WhatsApp chat between the petitioner and her husband. She has filed a false complaint in connivance with her parents. The respondents filed complaints against the petitioner before various forums. The petitioner and her son were awarded 2,000/- per month in a petition filed under Section 125 of Cr.P.C. False allegations of demand of dowry were made. Learned Trial Court erred in summoning the respondents without any reasonable cause. Hence, it was prayed that the present petition be allowed, the order passed by the learned .

Trial Court and the proceedings pending before the learned Trial Court be ordered to be quashed.

5. The petition is opposed by filing a reply by the petitioner (Anju Kumari) making a preliminary submission regarding the respondents not having come to the Court with clean hands. The contents of the petition were denied on merits.

It was asserted that the petitioner was working as HR in Future Trading Pvt. Ltd. In the years 2015 to 2017. She gave an advertisement in the Tribune for her marriage. Respondent No.1 called the petitioner for marriage with his son. The marriage was solemnized between the son of the respondent and the petitioner on 20.3.2017 in Mahadev Gasota Temple in District Hamirpur. Ravi Kumar, son of the respondents, was married to Smt. Manju in the year 2004. No child was born to him. He sought divorce from his first wife in the year 2010. He solemnized second marriage with Smt. Nirupama at Bangalore.

He sought divorce from her on 16.3.2017. He solemnized third marriage with the petitioner by concealing these facts from her.

He left for Australia five days after the marriage. He remained in contact with the petitioner for about five months but he changed his phone number afterwards. The respondents have not .

disclosed his address and mobile number to the petitioner. They ousted the petitioner from her matrimonial home in December 2017. The petitioner made a complaint to the Gram Panchayat Barara on 24.1.2018. The Panchayat summoned the respondents.

The petitioner had to make a complaint to the Protection Officer under the Protection of Women from Domestic Violence Act. She had also made complaints to the police authorities regarding the respondents' behaviour. The petitioner also made a complaint against the respondent's son before the National Commission for Women on 2.8.2019. The petitioner has been ousted from her home and she had no option except to file the complaints before the various authorities. Learned Magistrate had rightly taken cognizance of the matter and ordered issuance of summons. The power under Section 482 of Cr.P.C. is extraordinary and should not be exercised routinely. The respondents have concealed the cruelties inflicted by them upon the petitioner. Therefore, it was prayed that the present petition be dismissed.

6. I have heard Mr Ashwani Sharma, learned Counsel for the respondents. Mr. Ajit Sharma, learned Additional Advocate General for respondent No.1-State and Mr. Rajesh Verma, learned Counsel for respondent No.2.

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7. Mr. Ashwani Sharma, learned Counsel for the respondents submitted that the petitioner had filed a false complaint against the respondents. She had also filed a complaint under Section 498A of IPC, which was quashed by this Court in Cr.MMO No. 332 of 2019, titled Prithvi Chand and another Vs. State of H.P. and others, decided on 5.8.2021. The continuation of the proceedings in the present case will amount to an abuse of the process of the Court. Therefore, he prayed that the present petition be allowed, the order passed by the learned Trial Court and the complaint pending before the learned Trial Court be quashed.

8. Mr. Ajit Sharma, learned Deputy Advocate General for the respondent No.1-State submitted that a complaint was received by the Protection Officer. The Protection Officer conducted an inquiry and found the complaint to be correct. He filed a petition under the Protection of Women from Domestic Violence Act before the competent Court of law. The competent Court is seized of the matter. Therefore, he prayed that the present petition be dismissed.

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9. Mr. Rajesh Sharma, learned counsel for respondent No.2 submitted that the present petition is not maintainable as the proceedings under the Domestic Violence Act are civil. The petitioner had filed a true complaint before the learned Trial Court. She was harassed by the respondents and was turned out of her matrimonial home. Thus, she was left with no option but to file complaints before the various authorities. The respondents have not disclosed the address of their son and the petitioner is unable to contact him. No maintenance is being provided to the petitioner which amounts to economic abuse.

Therefore, he prayed that the present petition be dismissed.

10. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

11. At the outset, it is to be noticed that the respondents have filed the present petition under Section 482 of Cr.P.C. It was laid down by this Court in Sanjeev Kumar Vs. Sushma Devi 2023 HHC 6380 that the proceedings under chapter-4 of the Protection of Women from Domestic Violence Act are civil in nature and petition under Section 482 of Cr.P.C. is not maintainable for challenging the proceedings under Section 12 .

of the Act. However, recourse can be had to Article 227 of the Constitution of India in appropriate cases. Therefore, in view of this precedent, the present petition under Section 482 of Cr.P.C.

is not maintainable and is liable to be dismissed on this ground alone.

12. It was submitted that the petition was filed before the delivery of the judgment by this Court in Sanjeev Kumar (supra).

This submission will not assist the respondents. The Court does not create the law but lays down the law which means that the law was always what was declared by the Court. It was laid down by the Karnataka High Court in Brindavan Roller Flour Mills Private Limited Vs. Joint Commissioner of Commercial Taxes 1994 ILR (Kar.) 2196 speaking through Hon'ble Mr R.V. Raveendran J, that a judgment pronounced by Hon'ble Supreme Court declares the law and does not lay down a new law. Hence, it applies to all the pending litigations. This position was also recognized in Suresh Chandra Verma (Dr.) v. Chancellor, Nagpur University (1990) 4 SCC 55: 1991 SCC (L&S) 194: (1991) 16 ATC 439 wherein it was observed:

"15. The second contention need not detain us long. It is based primarily on the provisions of Section 57(5) of the Act. The contention is that since the provisions of that .

section give power to the Chancellor to terminate the services of a teacher only if he is satisfied that the appointment 'was not in accordance with the law at that time in force' and since the law at that time in force viz.

on 30-3-1985 when the appellants were appointed, was the law as laid down in Bhakre case [WP No. 1876 of 1984 decided on 7-12-1984 (Nag)] the termination of the appellants is beyond the powers of the Chancellor. The argument can only be described as naive. It is unnecessary to point out that when the court decides that the interpretation of a particular provision as given earlier was not legal, it in effect declares that the law as it stood from the beginning was as per its decision and that it was never the law otherwise. This being the case, since the Full Bench and now this Court has taken the view that the interpretation placed on the provisions of law by

the Division Bench in Bhakre case [WP No. 1876 of 1984 decided on 7-12-1984 (Nag)] was erroneous, it will have to be held that the appointments made by the University on 30-3-1985 pursuant to the law laid down in Bhakre case [WP No. 1876 of 1984 decided on 7-12-1984 (Nag)] were not according to law. Hence, the termination of the services of the appellants was in compliance with the provisions of Section 57(5) of the Act."

13. This position was reiterated in M.A. Murthy v. State of Karnataka (2003) 7 SCC 517: 2003 SCC (L&S) 1076 and it was held:

"8. The learned counsel for the appellant submitted that the approach of the High Court is erroneous as the law declared by this Court is presumed to be the law at all times. Normally, the decision of this Court enunciating a principle of law is applicable to all cases irrespective of its stage of pendency because it is assumed that what is enunciated by the Supreme Court is, in fact, the law from inception."

14. Similar is the judgment of this Court in Oriental .

Insurance Company vs. Mathu Ram 2019 ACJ 65 (HP) wherein it was held:

"23. It is more than settled that prospective declaration of law is a device innovated to avoid reopening of settled issues. However, there has to be no prospective overruling unless it is so indicated in a particular judgment.

24. A Full Bench of the Punjab and Haryana High Court in Commissioner of Income Tax v. Smt. Aruna Luthra (2001) 252 ITR 76 opined that a declaration by the Court is-This was the law, this is the law. This is how the provisions have to be construed. The Court merely declares the law and earlier decision by the Court is "simply no law". It shall be apposite to extract the relevant observations which read thus: --

"A Court decides a dispute between the parties. The cause can involve a decision on facts. It can also involve a decision on a point of law. Both may have a bearing on the ultimate result of the case. When a court interprets a provision, it decides as to what is the meaning and effect of the words used by the Legislature. It is a declaration regarding the statute. In other words, the judgment declares as to what the Legislature had said at the time of the promulgation of the law. The declaration is-This was the law. This is the law. This is how the provision shall be construed.

Julius Stone in Social Dimensions of Law and Justice (First Indian Reprint 1999) (Chapter XIV), while dealing with the subject of Judge and Administrator in Legal Ordering, observes as under:

"If, then, a main impulse underlying the stare decisis doctrine is that justice should respect reasonable reliance of affected parties based on the law as it .

seemed when they acted, this impulse still has force when reliance is frustrated by an overruling. Despite this, it has long been assumed that a newly emergent rule is to be applied not only to future facts, and to the necessarily past facts of the very case in which it emerges, but to all cases thereafter litigated, even if these involved conduct, which occurred before the establishment of the new rule.

This has proceeded ostensibly on the conceptual basis, clearly formulated since Blackstone, that the new holding does not create, but merely declares law. So that any prior putative law under which the parties acted is to be regarded as simply not law".

(emphasis supplied) The above observations clearly support the principle that the court merely declares law. An earlier decision as declared by the court is "simply no law".

15. Therefore, the judgment of the Court in Sanjeev (supra) declared the law that the petitions under the Protection of Women from Domestic Violence Act were always civil and no petition under Section 482 Cr.P.C. always lay against the proceedings under the Protection of Women from Domestic Violence Act.

16. The law regarding the exercise of jurisdiction under Section 482 of Cr.P.C. was considered by the Hon'ble Supreme Court in A.M. Mohan v. State, 2024 SCC OnLine SC 339, wherein it was observed:

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9. The law with regard to the exercise of jurisdiction under Section 482 of Cr. P.C. to quash complaints and criminal proceedings has been succinctly summarized by this Court in the case of Indian Oil Corporation v. NEPC India Limited (2006) 6 SCC 736: 2006 INSC 4521 after considering the earlier precedents. It will be apposite to refer to the following observations of this Court in the said case, which read thus:

"12. The principles relating to the exercise of jurisdiction under Section 482 of the Code of Criminal Procedure to quash complaints and criminal proceedings have been stated and reiterated by this Court in several decisions. To mention a few--Madhavrao Jiwajirao Scindia v. Sambhajirao Chandrojirao Angre [(1988) 1 SCC 692: 1988 SCC (Cri) 234], State of Haryana v. Bhajan Lal [1992 Supp (1) SCC 335: 1992 SCC (Cri) 426], Rupan Deol Bajaj v. Kanwar Pal Singh Gill [(1995) 6 SCC 194: 1995 SCC (Cri) 1059], Central Bureau of Investigation v. Duncans Agro Industries Ltd. [(1996) 5 SCC 591: 1996 SCC (Cri) 1045], State of Bihar v. Rajendra Agrawalla [(1996) 8 SCC 164: 1996 SCC (Cri) 628], Rajesh Bajaj v. State NCT of Delhi [(1999) 3 SCC 259: 1999 SCC (Cri) 401], Medchl Chemicals & Pharma (P) Ltd. v. Biological E. Ltd. [(2000) 3 SCC 269: 2000 SCC (Cri) 615], Hridaya Ranjan Prasad Verma v. State of Bihar [(2000) 4 SCC 168: 2000 SCC (Cri) 786], M. Krishnan v. Vijay Singh [(2001) 8 SCC 645: 2002 SCC (Cri) 19] and Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haque [(2005) 1 SCC 122: 2005 SCC (Cri) 283]. The principles, relevant to

our purpose are:

(i) A complaint can be quashed where the allegations made in the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out the case alleged against the accused.

For this purpose, the complaint has to be examined as a whole, but without examining the merits of the allegations. Neither a detailed inquiry nor a

meticulous analysis of the material nor an assessment of the reliability or genuineness of the allegations in the complaint is warranted while examining prayer for quashing a complaint.

(ii) A complaint may also be quashed where it is a clear abuse of the process of the court, as when the criminal proceeding is found to have been initiated with mala fides/malice for wreaking vengeance or to cause harm, or where the allegations are absurd and inherently improbable.

(iii) The power to quash shall not, however, be used to stifle or scuttle a legitimate prosecution. The power should be used sparingly and with abundant caution.

(iv) The complaint is not required to verbatim reproduce the legal ingredients of the offence alleged. If the necessary factual foundation is laid in the complaint, merely on the ground that a few ingredients have not been stated in detail, the proceedings should not be quashed. Quashing of the complaint is warranted only where the complaint is so bereft of even the basic facts which are necessary for making out the offence.

(v.) A given set of facts may make out : (a) purely a civil wrong; (b) purely a criminal offence; or (c) a civil wrong as also a criminal offence. A commercial transaction or a contractual dispute, apart from furnishing a cause of action for seeking remedy in civil law, may also involve a criminal offence. As the nature and scope of a civil proceeding are different from a criminal proceeding, the mere fact that the complaint relates to a commercial transaction or breach of contract, for which a civil remedy is available or has been availed, is not by itself a ground to quash the criminal proceedings. The test is whether the allegations in the complaint disclose a criminal offence or not.

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17. Similar is the judgment Maneesha Yadav v. State of U.P., 2024 SCC OnLine SC 643, wherein it was held: -

12. We may gainfully refer to the following observations of this Court in the case of State of Haryana v. Bhajan Lal 1992 Supp (1) SCC 335: 1990 INSC 363:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article

226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission .

of any offence and make out a case against the accused.

(4) Where the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or

inherent powers do not confer an arbitrary jurisdiction on the court to act according to its whim or caprice."

18. In the present case, the petitioner had specifically .

stated in the complaint made to the Protection Officer that she was being harassed by her parents-in-law. They prevented her from talking to her husband on the telephone. They asked the petitioner to transfer the land in their name where the house was to be constructed by them. These acts fall within the definition of domestic violence within the meaning of Section 3 of the Protection of Women from Domestic Violence Act.

19. A heavy reliance was placed upon the order passed by this Court in Prithvi Chand Vs. State of H.P. Cr.MMO No. 332 of 2019, decided on 5.8.2021. This judgment will not assist the respondents because the Court was concerned with a complaint made under Section 498-A of IPC. The ingredients of an offence punishable under Section 498-A and the definition of economic abuse under Section 3 of the Women from Domestic Violence Act are not similar. Hence, no advantage can be derived from the findings recorded in the previous proceedings.

20. Reference was made to the Whatsapp chat between the petitioner and her husband and various complaints made by the respondents to various authorities. These documents do not form part of the record of the learned Trial Court and it is not .

permissible to look into them while deciding the petition under Section 482 of Cr.P.C. It was laid down by the Hon'ble Supreme Court in MCD v. Ram Kishan Rohtagi, (1983) 1 SCC 1: 1983 SCC (Cri) 115, that the proceedings can be quashed if on the face of the complaint and the papers accompanying the same no offence is constituted. It is not permissible to add or subtract anything. It was observed:

"10. It is, therefore, manifestly clear that proceedings against an accused in the initial stages can be quashed only if on the face of the complaint or the papers accompanying the same, no offence is constituted. In other words, the test is that taking the allegations and the complaint as they are, without adding or subtracting anything, if no offence is made out then the High Court will be justified in quashing the proceedings in exercise of its powers under Section 482 of the present Code."

21. Madras High Court also held in Ganga Bai v. Shriram, 1990 SCC OnLine MP 213: ILR 1992 MP 964: 1991 Cri LJ 2018, that the fresh evidence is not permissible or desirable in the proceedings under Section 482 of Cr.P.C. It was observed:

"Proceedings under Section 482, Cr.P.C. cannot be allowed to be converted into a full-dressed trial. Shri Maheshwari filed a photostate copy of an order dated 28.7.1983, passed in Criminal Case No. 1005 of 1977, to which the present petitioner was not a party. Fresh evidence at this stage is neither permissible nor desirable. The respondent by filing this document is virtually introducing .

additional evidence, which is not the object of Section 482, Cr.P.C."

22. Andhra Pradesh High Court also took a similar view in Bharat Metal Box Company Limited, Hyderabad and Others vs. G. K. Strips Private Limited and another, 2004 STPL 43 AP, and held:

"9. This Court can only look into the complaint and the documents filed along with it and the sworn statements of the witnesses if any recorded. While judging the correctness of the proceedings, it cannot look into the documents, which are not filed before the lower Court.

Section 482 Cr.PC debars the Court to look into fresh documents, in view of the principles laid down by the Supreme Court in State of Karnataka v. M. Devendrappa and another, 2002 (1) Supreme 192. The relevant portion of the said judgment reads as follows:

"The complaint has to be read as a whole. If it appears that on consideration of the allegations, in the light of the statement made on oath of the complainant that the ingredients of the offence or offences are disclosed and there is no material to show that the complaint is mala fide, frivolous or vexatious, in that event there would be no justification for interference by the High Court. When information is lodged at the Police Station and an offence is registered, then the mala fides of the informant would be of secondary importance. It is the material collected during the investigation and evidence led in Court, which decides the fate of the accused person. The allegations of mala fides against the informant are of no consequence and cannot by itself be the basis for quashing the proceedings".

23. A similar view was taken in Mahendra K.C. v. State of Karnataka, (2022) 2 SCC 129: (2022) 1 SCC (Cri) 401 wherein it was .

observed on page 142:

"16. ... the test to be applied is whether the allegations in the complaint as they stand, without adding or detracting from the complaint, prima facie establish the ingredients of the offence alleged. At this stage, the High Court cannot test the veracity of the allegations nor for that matter can it proceed in the manner that a judge conducting a trial would, on the basis of the evidence collected during the course of the trial."

24. This position was reiterated in Supriya Jain v. State of Haryana, (2023) 7 SCC 711: 2023 SCC OnLine SC 765 wherein it was held:

13. All these documents which the petitioner seeks to rely on, if genuine, could be helpful for her defence at the trial but the same are not material at the stage of deciding whether quashing as prayed for by her before the High Court was warranted

or not. We, therefore, see no reason to place any reliance on these three documents.

25. A similar view was taken in *Iveco Magirus Brandschutztechnik GMBH v. Nirmal Kishore Bhartiya*, (2024) 2 SCC 86: 2023 SCC OnLine SC 1258 wherein it was observed:

"63. Adverting to the aspect of the exercise of jurisdiction by the High Courts under Section 482CrPC, in a case where the offence of defamation is claimed by the accused to have not been committed based on any of the Exceptions and a prayer for quashing is made, the law seems to be well settled that the High Courts can go no further and enlarge the scope of inquiry if the accused seeks to rely on materials which were not there before the Magistrate. This is based on the simple proposition that what the Magistrate could not do, the High Courts may not do. We may not be understood to undermine the High Courts' powers saved by Section 482CrPC; such powers are always available to .

be exercised *ex debito justitiae* i.e. to do real and substantial justice for the administration of which alone the High Courts exist. However, the tests laid down for quashing an FIR or criminal proceedings arising from a police report by the High Courts in the exercise of jurisdiction under Section 482CrPC not being substantially different from the tests laid down for quashing a process issued under Section 204 read with Section 200, the High Courts on recording due satisfaction are empowered to interfere if on a reading of the complaint, the substance of statements on oath of the complainant and the witness, if any, and documentary evidence as produced, no offence is made out and that proceedings, if allowed to continue, would amount to an abuse of the legal process. This too, would be impermissible if the justice of a given case does not overwhelmingly so demand." (Emphasis supplied)

26. Thus, it is not permissible to look into the documents on record and record a finding about the correctness or otherwise of the complaint made by the petitioner before the learned Trial Court.

27. It was submitted that the contents of the complaint are false. The present petition has been filed under Section 482 of Cr.P.C. and the Court has to see the allegations in the complaint to determine whether they fulfil the requirements of the Protection of Women from Domestic Violence Act. It is not permissible for the Court to conduct a fact-finding inquiry to determine the correctness or otherwise of the contents of the complaint at this stage. It was laid down by the Hon'ble Supreme Court in *Priyanka Jaiswal vs. State of Jharkhand*, 2024 SCC OnLine .

SC 685 that the Court exercises extra-ordinary jurisdiction under Section 482 of Cr.P.C. and cannot conduct a mini-trial or enter into an appreciation of an evidence of a particular case. It was observed:-

"13. We say so for reasons more than one. This Court in catena of Judgments has consistently held that at the time of examining the prayer for quashing of the criminal proceedings, the court exercising extra-ordinary jurisdiction can neither undertake to

conduct a mini-trial nor enter into appreciation of evidence of a particular case. The correctness or otherwise of the allegations made in the complaint cannot be examined on the touchstone of the probable defence that the accused may raise to stave off the prosecution and any such misadventure by the Courts resulting in proceedings being quashed would be set aside. This Court in the case of Akhil Sharda 2022 SCC OnLine SC 820 held to the following effect:

"28. Having gone through the impugned judgment and order passed by the High Court by which the High Court has set aside the criminal proceedings in the exercise of powers under Section 482 Cr. P.C., it appears that the High Court has virtually conducted a mini-trial, which as such is not permissible at this stage and while deciding the application under Section 482 Cr. P.C. As observed and held by this Court in a catena of decisions no mini-trial can be conducted by the High Court in the exercise of powers under Section 482 Cr. P.C. jurisdiction and at the stage of deciding the application under Section 482 Cr. P.C., the High Court cannot get into appreciation of evidence of the particular case being considered."

28. A similar view was taken in Maneesha Yadav v. State of U.P., 2024 SCC OnLine SC 643 wherein it was held that: -

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"13. As has already been observed hereinabove, the Court would not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint at the stage of quashing of the proceedings under Section 482 Cr. P.C. However, the allegations made in the FIR/complaint, if taken at its face value, must disclose the commission of an offence and make out a case against the accused. At the cost of repetition, in the present case, the allegations made in the FIR/complaint even if taken at its face value, do not disclose the commission of an offence or make out a case against the accused. We are of the considered view that the present case would fall under Category-3 of the categories enumerated by this Court in the case of Bhajan Lal (supra).

14. We may gainfully refer to the observations of this Court in the case of Anand Kumar Mohatta v. State (NCT of Delhi), Department of Home(2019) 11 SCC 706: 2018 INSC 1060:

"14. First, we would like to deal with the submission of the learned Senior Counsel for Respondent 2 that once the charge sheet is filed, the petition for quashing of FIR is untenable. We do not see any merit in this submission, keeping in mind the position of this Court in Joseph Salvaraj A. v. State of Gujarat [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59 : (2011) 3 SCC (Cri) 23]. In Joseph Salvaraj A. [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59 : (2011) 3 SCC (Cri) 23], this Court while deciding the question of whether the High Court could entertain the Section 482 petition for quashing of FIR when the charge- sheet was filed by the police

during the pendency of the Section 482 petition, observed : (SCC p. 63, para 16) "16. Thus, the general conspectus of the various sections under which the appellant is being charged and is to be prosecuted would show that the same are not made out even prima facie from the complainant's FIR. Even if the charge sheet .

had been filed, the learned Single Judge [Joesph Saivaraj A. v. State of Gujarat, 2007 SCC OnLine Guj 365] could have still examined whether the offences alleged to have been committed by the appellant were prima facie made out from the complainant's FIR, charge-sheet, documents, etc. or not."

29. Hence, it is not permissible for the Court to go into complaint.

r to the truthfulness or otherwise of the allegations made in the

30. The complaint has been filed before the learned Trial Court and the learned Trial Court is seized of the matter. It is for the learned Trial Court to go into the truthfulness or otherwise of the complaint filed before it and extraordinary jurisdiction cannot be exercised under Section 482 of Cr.P.C. to stop the proceedings without a proper trial. It was laid down by the Hon'ble Supreme Court in Iqbal v. State of U.P., (2023) 8 SCC 734:

2023 SCC OnLine SC 949 that when the charge sheet has been filed, learned Trial Court should be left to appreciate the same. It was observed:

"At the same time, we also take notice of the fact that the investigation has been completed and charge-sheet is ready to be filed. Although the allegations levelled in the FIR do not inspire any confidence more particularly in the absence of any specific date, time, etc. of the alleged offences, yet we are of the view that the appellants should prefer a discharge application before the trial court under Section 227 of the .

Code of Criminal Procedure (CrPC). We say so because even according to the State, the investigation is over and the charge sheet is ready to be filed before the competent court. In such circumstances, the trial court should be allowed to look into the materials which the investigating officer might have collected forming part of the charge sheet. If any such discharge application is filed, the trial court shall look into the materials and take a call whether any discharge case is made out or not."

31. Consequently, the present petition fails and the same is dismissed.

32. The observation made herein before shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla) Judge 11th July, 2024 (Chander)